

State vs Rahul on 16 January, 2024

IN THE COURT OF MS. T. PRIYADARSHINI
ADDITIONAL CHIEF METROPOLITAN MAGISTRATE
SOUTH DISTRICT, SAKET COURTS, NEW DELHI

CR CASE/ 2038808/2016
STATE Vs. RAHUL

State vs. Rahul
FIR No. 339/2015
Police Station : Saket
Under Section : 509/506 (Part II) IPC

Date of institution : 09.09.2016
Date of reserving : 10.01.2024
Date of pronouncement : 16.01.2024

JUDGMENT

- a) Serial number of the case : 2038808/2016
b) Date of commission of offence : 19.03.2015
c) Name of the complainant : Smt. Leena Kataria

d) Name, parentage and address : Rahul S/o Sh. Satpal R/o 1074, of the accused Bazaar Mohalla, Tughlakabad Village, New Delhi

e) Offence complained of : 509/506 (Part II) IPC

f) Plea of the accused : Accused pleaded not guilty

g) Final order : Acquittal

h) Date of final order : 16.01.2024 State vs. Rahul BRIEF STATEMENT OF FACTS FOR THE DECISION CASE OF THE PROSECUTION

1. The instant case was registered on the complaint/statement of complainant Smt. Leena Kataria, who averred therein that on 19.03.2015, she had come to the Mediation Centre, Saket Courts Complex, New Delhi to attend her court case. That case was related to dishonor of a cheque and Rahul Bidhuri @ Bholu Gurjar i.e. the accused was also the accused in that case. Both parties discussed with each other in the Mediation Cell at about 12:30 Noon. After end of the discussion, the complainant along with her husband and lawyer were coming downstairs. In the interim, the

accused called the complainant to come to him but the complainant did not wish to speak with the accused. Thereafter, the husband and lawyer of the complainant convinced the complainant to approach the accused stating that there was no issue in holding talks with the accused at that moment. The complainant approached the accused and by that time her husband and lawyer had left therefrom. The accused stated that he will return the money if the complainant established physical relationship with him for a day. He also warned that she cannot rescue herself from the Gurjar community. The accused further threatened the complainant that he had ulterior motives and he could turn her in-laws against her. The accused also threatened the complainant that he would not let her stay in her in-laws' house. Again, the accused stated that if she did not establish physical relationship with him, he would kill her husband or brother. The complainant further alleged that previously, State vs. Rahul Lakhanpal (the elder brother of the accused) had also sent goons to her house and extended threats to her. The accused kept on using abusive language against the complainant and also made remarks that the mother-in-law of the complainant used to have physical relationship with his father. Agitated, the complainant slapped the accused. In this background, the instant FIR was registered and subsequently, chargesheet was filed.

CHARGE

2. Vide order dated 23.09.2016, charge for the offences punishable under Sections 509 and 506 (Part II) of the Indian Penal Code, 1860 (hereinafter referred to as "the IPC") was framed against the accused, who pleaded not guilty and claimed trial.

ADMISSION/DENIAL OF DOCUMENTS

3. Vide separate orders dated 31.10.2022 and 21.12.2023, in compliance to the provisions of Section 294 of the Code of Criminal Procedure, 1973 (hereinafter "the Code"), the accused was called upon to admit the genuineness of: i) The present FIR,

ii) DD No. 16 A; and iii) Statement under Section 164 of the Code vide Ex A1 to A3.

EVIDENCE OF THE PROSECUTION

4. Prosecution has examined four witnesses i.e. PW1 Ms. State vs. Rahul Leena Kataria (the complainant), PW2 Sh. Pankaj Sharma, PW3 HC Sumit and PW4 SI Amar Singh [the investigating officer (IO)].

5. PW1/Complainant Ms. Leena Kataria deposed that on 19.03.2015 at about 12:30 pm, she was present in Mediation Cell regarding her cheque bounce case against Rahul Bidhuri @ Bholu Gujar. On that day, they could not arrive at a settlement. She along with her husband and advocate came out of the Mediation Cell and when she was coming downstairs, the accused called her. She did not want to talk to the accused, however, on the insistence of her husband and advocate, she went to the accused. The accused rudely talked to the complainant and also misbehaved with her. The accused asked the complainant that if she would establish physical intimacy with him, he would repay her the cheque amount. The accused also warned her that they were Gurjars and not to mess with them.

The accused stated that they had already created many problems for the complainant and they would turn her father-in-law and mother-in-law against her. He also threatened that the complainant had only brother who would be killed along with her husband, if she did not accept the proposal of sleeping with the accused overnight. Thereafter, the accused tried to touch the private parts of the complainant, when she resisted people who had gathered around the spot. The accused also used abusive language against the complainant in presence of those persons. Further, the accused told the complainant that her mother-in-law also used to sleep with his father and the husband of the complainant was actually State vs. Rahul the son of the father of the accused. The accused further told the complainant that if she would also sleep with him, he would repay her the cheque amount and would not disclose this fact to other persons. The complainant slapped the accused for his abusive language and ill-behaviour. Thereafter, the accused ran away from the spot. The complainant presented a written complaint in PS Saket vide Ex PW1/A. The police accompanied the complainant to the spot and prepared site plan at her instance. The statement of the complainant under Section 164 of the Code was also recorded vide Ex PW1/B. The complainant further deposed that previously, accused's brother had also intruded into her house along with his goons, who had beaten her husband and threatened to kill her and her husband, if the cheque bounce case against accused Rahul Bidhuri was not withdrawn. The complainant and her husband made a complaint before the SHO, PS Saket and consequently, one FIR was lodged against the accused persons for causing injuries to the husband of the complainant. The complainant correctly identified the accused. The witness was duly cross-examined by the Ld. Defence Counsel.

6. PW2 Sh. Pankaj Sharma deposed that on 19.03.2015 at about 12:30-1:00 pm, he along with his wife, namely, Leena Kataria and advocate, namely, Sh. Satish was coming out of the Mediation Cell, Saket after attending the hearing of cheque bounce case. PW2 further deposed that accused Rahul called her wife and stated "Leena Ji, Mai Baat Karna Chahta Hoon", on which their advocate advised them that there was no harm to talk to the accused. Thereafter, PW2 along with the advocate came to State vs. Rahul the chamber, leaving her wife there to talk to the accused. After about 4-5 minutes, PW2 received a call from her wife, wherein she was weeping at that time and stated that the accused had misbehaved and abused her. Thereafter, PW2 went there and found that accused Rahul had fled away. PCR officials came there and they saw the CCTV footage, wherein nothing was seen due to insufficient light. PW2 further deposed that her wife told him that the accused had threatened her saying "Apne Pati Ko Bachayegi Ya Apne Bhai Ko Bachayegi. Apna Case Wapas Le Le". She also told PW2 that the accused had abused her, saying "Ek Raat Ke Liye Aaja, Cheque Ke Paise De Dunga". Thereafter, the PCR officials took PW2 and his wife to PS Saket. The wife of PW2 gave a written complaint to the police officials. PW2 correctly identified the accused. PW2 further deposed that after few months of the aforesaid incident, the accused along with his brothers, namely, Savit Bidhuri, Rajesh Bidhuri and Ravi Bidhuri came to his house and all of them beat him with dandas and punch. PW2 sustained injuries on his head, hands and legs and an FIR bearing No. 527/15 at PS Pul Prahlad Pur was lodged against all of them and the said case was lying pending before the court. Thereafter, on 04.08.2014 between 10:30 am - 11.00 am, accused Rahul along with his three brothers named above and his father, namely, Sh. Satpal Bidhuri attacked PW2 near Okhla Mor. PW2 sustained injury in his ear. PW2 further deposed that accused Rahul, his brothers and father were threatening him and his family and pressurizing them to withdraw the cases pending against them. Since PW2 did not disclose the complete fact, he was cross-examined by Ld. APP State

vs. Rahul for State. He was also cross-examined by the Ld. Defence Counsel.

7. PW3 HC Sumit deposed that on 19.03.2015, he was on emergency duty with IO SI Amar Singh from 08:00 am to 08:00 pm. IO received DD No. 16A, upon which PW3 along with IO reached at the spot i.e. Saket Courts Complex. Complainant Leena met with them at Utility Block. Thereafter, the complainant handed over a written complaint to IO, who prepared rukka on the same and got the FIR registered through PW3. After registration of the FIR, PW3 returned to the spot and handed over copy of the FIR and original rukka to IO. The witness was duly cross-examined by the Ld. Defence Counsel.

8. PW4 SI Amar Singh is the IO of the present case, who deposed that on 19.03.2015, he was on emergency duty with Ct. Sumit from 08:00 am to 08:00 pm. At about 12:45 pm, he received DD No. 16A regarding misbehaviour with a lady and threatening her at Saket Courts Complex. Thereafter, he along with Ct. Sumit reached Utility Block, Saket Courts Complex, where they met complainant Leena Kataria along with her husband, who narrated the entire incident to the IO and handed over a written complaint vide Ex PW1/A. Thereafter, IO prepared rukka on the same vide Ex PW4/A and got the FIR registered through Ct. Sumit. After registration of the FIR, Ct. Sumit returned to the spot along with copy of the FIR and original rukka. Thereafter, IO prepared site plan at the instance of the complainant vide Ex PW4/B. He also checked the CCTV footage of the Utility Block, however, the CCTV cameras were not State vs. Rahul covering the exact spot of the incident i.e. stairs of the Utility Block. Thereafter, IO searched the accused, however, he was not traceable. IO recorded the statements of the complainant, her husband and Ct. Sumit. On 25.03.2015, IO got the statement of complainant Leena Kataria recorded under Section 164 of the Code. On 19.04.2015, IO served notice (Ex PW4/C) upon the accused under Section 41A CrPC. After interrogation, the accused was bound down vide memo Ex PW4/D. On 06.07.2015, IO served notice (Ex PW4/E) upon the In-Charge, Security, Saket Courts Complex under Section 91 of the Code for providing the CCTV footage of Mediation Centre dated 19.03.2015 between 12:00 pm to 01:00 pm. After completing investigation of the present case, IO prepared the charge sheet and filed it before the court. PW4 correctly identified the accused. The witness was duly cross-examined by the Ld. Defence Counsel.

STATEMENT / DEFENCE OF THE ACCUSED

9. In his statement recorded under Section 313 of the Code, the accused denied the entire evidence against him. He stated that he is innocent and has been falsely implicated in this case. Accused did not lead any evidence in his defence.

ANALYSIS AND FINDINGS

10. The record has been thoroughly and carefully perused. The respective submissions of Sh. Naresh Choudhary, Ld. Assistant Public Prosecutor for State and Sh. Ajay Sharma, Ld. State vs. Rahul Counsel for the accused have been considered.

11. The accused has been charged under Sections 509/506 Part II of the IPC. Section 509 IPC provides the following:

"509. Word, gesture or act intended to insult the modesty of a woman - Whoever, intending to insult the modesty of any woman, utters any word, makes any sound or gesture, or exhibits any object, intending that such word or sound shall be heard, of that such gesture or object shall be seen, by such woman, or intrudes upon the privacy of such woman, shall be punished with simple imprisonment for a term which may extend to one year, or with fine, or with both."

12. Section 506 and Section 503 IPC are reproduced below:

"506. Punishment for criminal intimidation. - Whoever commits, the offence of criminal intimidation shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both; If threat be to cause death or grievous hurt, etc. - And if the threat be to cause death or grievous hurt, or to cause the destruction of any property by fire, or to cause an offence punishable with death or imprisonment for life, or with imprisonment for a term which may extend to seven years, or to impute, unchastity to a woman, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

503. Criminal intimidation. - Whoever threatens another with any injury to his person, reputation or property, or to the person or reputation of any one in whom that person is interested, with intent to cause alarm to that person, or to cause that person to do any act which he is not legally bound to do, or to omit to do any act which that person is legally entitled to do, as the means of avoiding the execution of such threat, commits criminal intimidation. Explanation.- A threat to injure the reputation of any deceased person in whom the person threatened is interested, is within this section."

13. On reading of Section 509 IPC, it is apparent that in order State vs. Rahul to bring an act committed by a person within the purview of Section 509, the act must have been committed with the intention to insult the modesty of any woman or to intrude upon the privacy of such woman. Thus, intention is the basic ingredient of the offence under Section 509 IPC.

14. The main question that needs to be answered is whether the accused hurled abuses at her with an intent to outrage her modesty. Mere utterance of abuses does not automatically amount to outrage of modesty. In *Abhijeet J.K. vs. State of Kerala* [2020 SCC OnLine Ker 703], the Hon'ble High Court of Kerala held that there is a distinction between an act of merely insulting a woman and an act of insulting the modesty of a woman. In order to attract Section 509 IPC, merely insulting a woman is not sufficient and insult to modesty of a woman is required to have been done. Section 509 IPC criminalizes a 'word, gesture or act intended to insult the modesty of a woman' and in order to establish this offence it is necessary to show that the modesty of a particular woman or a readily identifiable group of women has been insulted by a spoken word, gesture or physical act. In *State of Punjab vs. Major Singh* [AIR 1967 SC 63], the Hon'ble Supreme Court held that the essence of a woman's modesty is her sex. The modesty of an adult female is writ large on her body. Young or old,

intelligent or imbecile, awake or sleeping, the woman possesses modesty. In *Rupan Deol Bajaj vs. K.P.S. Gill* [AIR 1996 SC 309], it was held that if the word uttered or the gesture made could be perceived as one which is capable of shocking the sense of decency of a woman, *State vs. Rahul* then it can be found that it is an act of insult to the modesty of the woman. In *Basheer vs. Kerala* [2014 KHC 5026], it was held that there must be a definitive allegation of insult to the modesty of woman or intrusion into the privacy of woman.

15. On Section 503 of IPC, in *Surinder Suri vs. State of Haryana* [Decision dated 09.05.1996 of the Hon'ble High Court of Punjab and Haryana] it was observed that the gist of the offence of Sections 503 and 506 IPC is that the effect which the threat is intended to have upon the mind of the person threatened. The threat must be one that can be put into execution by the person threatening. Mere outburst is not sufficient to hold the mischief within Section 506 of IPC [Re: *Subramanian Swamy vs. C. Pushparaj* (1998 1 CTC 300)]. Further, the Hon'ble Supreme Court in *Manik Taneja and another vs. State of Karnataka* [2015 7 SCC 423] has observed:

"It is the intention of the accused that has to be considered in deciding as to whether what he has stated comes within the meaning of "Criminal intimidation". The threat must be with intention to cause alarm to the complainant to cause that person to do or omit to do any work. Mere expression of any words without any intention to cause alarm would not be sufficient to bring in the application of this section. But material has to be placed on record to show that the intention is to cause alarm to the complainant."

16. The act of insult alleged against the accused is that he abused the complainant outside the mediation center. The accused, on the other hand, has vehemently denied that any such incident occurred and submitted that the complainant has filed this complaint as a counter-blast to the acquittal of the accused in *State vs. Rahul* the cheque bounce case. There are various inconsistencies and contradictions in the prosecution version which are listed below:

a) Firstly, the complainant in her initial statement did not state that the accused attempted to touch her private parts. However, in her deposition dated 02.11.2016, she deposed that the accused attempted to touch her private part and when she resisted, public persons gathered around the spot. Therefore, the complainant appears to have improved her complaint by adding additional averments in her deposition against the accused.

b) Secondly, except for the complainant and her husband, no other witnesses have been joined in the investigation. The complainant, in her deposition, stated that public persons had gathered around the spot when the accused attempted to touch her private part. However, to the contrary, in her cross-examination, she stated that she cannot tell whether public persons heard the chaos and saw the incident. These are polar opposite submissions. Further, public persons have not been joined in the investigation.

Further, the advocate (Satish) who was present during the mediation proceedings ought to have been summoned as a witness to testify whether he and the husband of the complainant left the complainant outside the mediation center to talk with the accused after which the alleged incident happened. Also, the complainant PW1 and her husband have been suspiciously guarded with respect to the details of the advocate as complainant PW1 denied State vs. Rahul knowing the full name of the advocate during her deposition before the court. The non-joining of the advocate as a witness has substantially affected the case of the prosecution.

c) Thirdly, the complainant deposed that certain security personnels were present at the time of the incident. The said security staff ought to have been present subsequently as they would have been posted in the mediation center. It would have been plausible for the IO to record their statements to determine the veracity of the complaint. In fact, the complainant, in her cross- examination, deposed that the statements of the Security Guards have been recorded. However, the said statements, if any, have not been placed on record for reasons best known to the IO.

d) Fourthly, apart from the complainant PW1, no other eyewitness has been examined. The husband of the complainant has stated that he proceeded to his counsel's chamber after the mediation proceedings and he was informed by the complainant about the incident over a call. Considering the fact that the complainant and the accused were also embroiled in other litigation, it is prudent to state that the complainant actually had an axe to grind against the accused. In this background, it was necessary for the prosecution to have examined impartial eyewitnesses, who though were present, have not been examined. This has caused immense prejudice to the prosecution.

State vs. Rahul

e) Fifthly, in her examination in chief, the complainant PW1 deposed that the incident occurred in the siting area outside the Mediation Centre. However, PW4 SI Amar Singh deposed that he checked the CCTV footage around the place of incident and the stairs of utility block were not covered by CCTV. Therefore, there are contrary averments w.r.t. the place of incident itself which raises aspersions on the version of the complainant. Moreover, PW4 SI Amar has deposed that he requested for the CCTV footage of the Mediation Centre for 19.03.2015 from 12 noon to 1 p.m. However, the timing mentioned in the complaint is 2 p.m. Therefore, the application itself is erroneous.

f) Sixthly, whilst there is no mention of physical touch by the accused in her initial complaint, in her cross- examination in court, she deposed that the accused physically touched her and then she slapped him. To the contrary, in her statement recorded under Section 164 of the Code, she stated that she slapped the accused when the accused desired to touch her. These inconsistencies are material and cannot be ignored.

g) Seventhly, PW2 Pankaj in his statement recorded under Section 161 of the Code has stated that when the accused called the complainant to discuss, he advised the complainant to speak with the accused. After the complainant went to the stairs to discuss the matter with the accused, PW2 along with his lawyer left the place of incident. After hearing the noise of the complainant, PW2 State vs.

Rahul went back to the spot and he saw the accused behaving badly with the complainant and heard him intimidate her. This statement recorded under Section 161 of the Code is diametrically opposite to the deposition of PW2 wherein he stated that he reached his lawyer's chamber and then received a phone call from the complainant regarding the incident. These contradictory versions do not inspire the confidence of this court and attune to the benefit of the accused.

17. As accused and the complainant were known to each other and involved in other litigation, false implication of the accused by the complainant in the present case cannot be ruled out in view of the fact that the prosecution witnesses have been inconsistent w.r.t. material facts. Due to the material contradictions, embellishments and improvements in the testimonies of the victim and her husband (PW1 and PW2), a doubt has been created in the story of prosecution pointing that false implication of the accused cannot be ruled out in the present case. Hence, in view of the foregoing discussion, it is crystal clear that the prosecution has miserably failed to lead convincing and clinching evidence against accused, namely, Rahul to bring them within the four corners of the offences under Sections 509/506 Part II of IPC. Accordingly, the aforesaid accused is acquitted of the offences punishable under Sections 509/506 Part II of IPC.

18. In compliance to Section 437A of the Code, the accused is State vs. Rahul directed to furnish bail bond.

19. File be consigned to Record Room.

Dictated and announced in open Court on 16.01.2024.

T.	PRIYADARSHINI
PRIYADARSHINI	
	Date: 2024.01.19
	15:17:13 +0530
(T. Priyadarshini)	

Additional Chief Metropolitan Magistrate South District, Saket Courts, New Delhi 16.01.2024 State vs. Rahul